

# Article III — The Legislature

Two chambers, one bill path. The Assembly proposes; the Senate ratifies, confirms, and tries. Neither can act for the other — and the constitution specifies exactly what each requires to act at all.

§3.1 – §3.15  
15 provisions

THE TWO CHAMBERS

### The Assembly

LOWER CHAMBER · §3.1–3.3

**200 members** · proportional (Webster method) · **4-year terms**

All legislation **originates** in the Assembly

Speaker elected by absolute majority of full seated membership

Member financial interests disclosed to **LM**, published to NRS

Expulsion: 2/3 of full seated Assembly · Quorum: absolute majority

Districts drawn by States subject to 5 constitutional criteria (§3.3)

### The Senate

UPPER CHAMBER · §3.5–3.6

**2 senators per State** regardless of population · **6-year staggered terms** (3 classes)

Reviews, may amend *within the bill's subject matter* · Confirms appointments

Member financial interests disclosed to **LM**, published to NRS

Expulsion: 2/3 of full seated Senate

Treaty ratification: 2/3 of full seated Senate · Trade agreements: simple majority both chambers

Acts as trial chamber for Assembly-initiated removal proceedings (§3.10)

HOW A BILL BECOMES LAW

Assembly introduces → Single-subject check §3.4 → Assembly vote (abs. majority) → Senate review ≤90 days → Final passage both chambers →

Dual consul review 10 bus. days → see Art. II

**§3.1 – Senate window**  
Senate must act within period defined by statute, not to exceed 90 days. Inaction triggers automatic deemed approval — both consuls still review.

**§3.4 – Single subject**  
Every bill addresses one clearly defined subject. Either Speaker may request an LM assessment of compliance, published to NRS. Violation voids the bill.

**§3.7 – Passage floor**  
Absolute majority of full seated membership of both chambers. Higher thresholds (2/3, 60%) apply to full seated membership — including single-chamber votes.

SENATE'S DISTINCT POWERS

| ACTION                        | THRESHOLD                                              |
|-------------------------------|--------------------------------------------------------|
| Treaty ratification           | 2/3 full seated Senate                                 |
| Treaty withdrawal affirmation | 2/3 full seated Senate · ≤90 days                      |
| Trade agreement approval      | Simple majority · both chambers                        |
| SC justice confirmation       | 2/3 full seated Senate · ≤120 days                     |
| Inferior court confirmation   | 2/3 full seated Senate · ≤90 days                      |
| Monitor General confirmation  | Simple majority · Senate                               |
| LC domain veto override       | 2/3 full seated Senate · any time that session         |
| CC formation Stage 2          | 2/3 full seated Senate · names sitting Assembly member |
| Removal trial verdict         | 2/3 of both chambers in concurrent vote                |
| Member expulsion              | 2/3 full seated Senate                                 |

ASSEMBLY-INITIATED REMOVAL · §3.10

Assembly charges (abs. majority) → Senate trial → 2/3 both chambers concurrent

Assembly may charge officers in the LC domain and inferior court judges. The LC is removed exclusively under §2.13; the CC under §2.6. Simple majority may bar from office post-conviction. Removal does not bar criminal prosecution.

DELEGATION · §3.15

Legislature may delegate defined authorities to either consul or independent agencies. Delegation must specify: **scope** · **subject** · **duration**. Rescindable at any time by simple majority of both chambers. Delegate may not sub-delegate beyond what statute authorizes.

NUMBERS WORTH REMEMBERING

**200**

Assembly seats · proportional · Webster method · 4-year terms

**2**

Senate seats per State regardless of population · 6-year staggered terms · 3 classes

**90**

Day ceiling on Senate action on Assembly bills (§3.1) · Also: treaty withdrawal Senate window (§3.6)

**§3.8**

Monitor access · All three Monitors have full access to legislative records; Legislature may not withhold

NOTABLE PROVISIONS

**§3.9 – Independent Agencies**

Legislature may establish agencies outside both executives.

Qualification standards must be **facially neutral** — may not exclude candidates on basis of policy view, party affiliation, or prior public criticism of the Legislature or either executive.

**§3.11 – Electoral Mandate Inviolability**

No act of the Legislature, either executive, any court, or any Monitor may shorten a constitutionally defined term. Removal under constitutionally specified processes is the only exception.

**§3.14 – Legislative Competence**

General authority for peace, order, and good governance. May not enact legislation that destroys States' capacity to govern their reserved functions, or that is incompatible with the constitutionally entrenched rights floor.